Yale University
EliScholar – A Digital Platform for Scholarly Publishing at Yale

The Politic | Yale University Publications

10-1999

The Yale Political Quarterly 1999 October

The Politic, Inc.

Follow this and additional works at: http://elischolar.library.yale.edu/politic

Part of the American Politics Commons, International Relations Commons, Policy Design, Analysis, and Evaluation Commons, Policy History, Theory, and Methods Commons, Political Theory Commons, Public Affairs Commons, and the Public Policy Commons

Recommended Citation
The Politic, Inc., "The Yale Political Quarterly 1999 October" (1999). *The Politic*. 42.
http://elischolar.library.yale.edu/politic/42

This The Yale Political Quarterly is brought to you for free and open access by the Yale University Publications at EliScholar – A Digital Platform for Scholarly Publishing at Yale. It has been accepted for inclusion in The Politic by an authorized administrator of EliScholar – A Digital Platform for Scholarly Publishing at Yale. For more information, please contact elischolar@yale.edu.

The Yale Political Quarterly

An Undergraduate Publication

VOLUME 21, NUMBER 1, OCTOBER 1999

FOUNDED 1979

Daniel O'Connor
Lessons of East Timor

Stephen Balkaran
Mass Media and Racism

Kalu N. Kalu
Confucianism and East Asian Economic Success

Ari Holtzblatt
The Liberal Case for Drug Legalization

Josh Chafetz, *Editor-In-Chief*
Rud Stone, *Design Editor*
Ari Holtzblatt, *Staff Writer*
Daniel O'Connor, *Staff Writer*
David Butkiewicz, *Staff Designer*

Past Editors of the YPQ:

Robert Kagan (1979-80)
Joseph Rose (1980-81)
Michael Froomkin (1981-82)
Diana West (1982-83)
Gideon Rose (1983-85)
Fareed Zakaria (1985-86)
Adam Freedman (1986-87)
Bart Aronson (1987-88)
Frederick Kagan (1988-89)
John Kuszewski (1989-90)
Kimberly Kessler (1990-91)
Carlos Viana (1991-92)
Jeff Campione (1992-93)
Gautam Dutta (1993-94)
Kirby Lunger (1994)
Donna Shestowsky (1994-95)
Bettina Polydor (1994-95)
Emily Satterthwaite (1995-96)
Jane Han (1996-98)
Dale Zumbroski (1997-98)
Nicole Hinnebusch (1998-99)

The Dread Pirate Roberts

Visit our web page at:

http://www.yale.edu/ypq/

- back issues
- subscription information
- links to other political sites
- submit letters to the editor

THE YALE POLITICAL QUARTERLY takes pride in bringing an independent rational voice to political discourse at Yale. Since 1979, THE YALE POLITICAL QUARTERLY has been the only nonpartisan political journal on campus. We print articles on U.S. domestic and foreign policy, as well as articles on important issues facing society. Our aim is to get past the rhetoric, allowing our readers to take informed stances.

Our quarterly publication schedule allows us to deal with issues of immediate public concern, but in a deeper and more thorough manner than more frequent political publications. We are able to examine the history, as well as the current state, of socio-political problems, and critique proposed solutions.

The YPQ is published by Yale College students, and Yale University is not responsible for its contents.

We encourage any and all interested to submit articles, responses, or letters to the Editor (from inside or outside the University). We will print as many thoughtful pieces as we can fit into our pages in the hopes of stimulating dialogue on campus. All written material should be submitted to the Editor-in-Chief or mailed to the YPQ. Students wishing to join the staff of the YPQ should contact the Editor by e-mail at josh.chafetz@yale.edu.

The YPQ wishes to extend its thanks to the Institution for Social and Policy Studies at Yale.

THE YALE POLITICAL QUARTERLY is a non-profit undergraduate organization. For subscription information, contact the Editor at josh.chafetz@yale.edu.

Copyright 1999 by THE YALE POLITICAL QUARTERLY.

THE YALE POLITICAL QUARTERLY
PO Box 200455
New Haven, CT 06520

THE YALE POLITICAL QUARTERLY

An Undergraduate Publication

VOLUME 21, NUMBER 1
OCTOBER 1999

4 **Past as Prologue**
Kalu N. Kalu

Our author inquires to what extent the economic successes of the East Asian economies are due to shared Confucian values.

10 **Mass Media and Racism**
Stephen Balkaran

Our author asks to what extent negative media potrayals of African-Americans have influenced race relations in this century.

14 **Resolution on Timor Island**
Daniel O'Connor

The author examines the conflict in East Timor and draws important conclusions for international relations from its resolution.

18 **Individuals and Drugs**
Ari Holtzblatt

Our author examines the liberal case for drug legalization.

22 **Sound Bites: Political Quotes**
Compiled by the Editors

Y915
P25
22:1-3
19:-2000

Partitions in the Rationalization of Ideas and Beliefs

Past as Prologue

Kalu N. Kalu

"A RATIONALIZED RELIGION IS, TO THE DEGREE THAT IT IS RATIONALIZED, self-conscious and worldly-wise. Its attitudes to secular life may be various, from the resigned acceptance of genteel Confucianism to the active mastery of ascetic Protestantism; but it is never naive."

(Max Weber, *Religion of China*, pp. 226-249)

A few years ago, Benjamin Elma of UCLA posed a rather curious question: "Are the impressive economic statistics of Taiwan, Hong Kong, South Korea, Singapore, and perhaps even the recent economic improvements in (mainland) China and North Korea in some sense related to the shared Confucian values of the East Asian community of nations? From this perspective, Japan may not have been the exceptional case of remarkable modernization in East Asia but simply the first."[1] Notwithstanding the fact that the recent Asian economic crisis may have dampened the optimism, the issues raised by this question are quite relevant in today's interdependent global economy. As most Asian countries moved steadily into the mainstream of the international political economy, there was a growing concern that their traditional ethical system and cultural orientations may be lost to history. Most scholars of comparative politics, among them Inglehart,[2] contend that the Confucian cultural tradition, its traditional rigidity having been shattered by the impact of the West, is an important element underlying the much-celebrated economic dynamism of certain parts of Asia. If there is an underlying cultural or religious theme that characterizes these societies, how then do we explain the evident differences in their socioeconomic development?

To the extent that the quest for economic development and traditional preservation presents an inherent paradox, this article argues that the Confucian ethic is relevant in any attempt to provide a rationale for the disparate nature of socioeconomic development between China and Japan.

For the Chinese as well as the Japanese, today's ethical challenges present yet another in a long series of tests of the Confucian system, a scheme of ethics that has creatively adapted to circumstances for nearly twenty five centuries while retaining its essential principles unaltered.[3] While the Japanese have been able to remold their Confucian heritage within a more sublimated nationalist framework which has shaped their economic development, the Chinese are still faced with the main question: which aspects of Confucianism can be construed as relevant or useful to the process of today's modernization, and which parts should be modified or discarded? Besides the fact that the rationalization or interpretation of Confucianism is different in both societies, it is also true that differences in the pattern and scope of Chinese and Japanese economic development can be explained by reference to their different views of

Kalu N. Kalu is a post-doctoral fellow at the Yale Department of Political Science.

human nature, and in their differing ideas of the family as the threshold of all economic organization.

Confucianism as a Social Ethic

Confucianism is a philosophy with a religious function. As a system of philosophy, its earliest principles were initiated by Confucius (551-479 B.C.) and further developed by Mencius (371-289 B.C.). It focuses on "the correct way of human existence, which presupposes an understanding of human nature, and seeks the blissful state of human perfection, that is, the union of Heaven and man."[4] Though this article touches on several aspects of the metaphysics of Confucian humanism, the intention is to explore its abstract as well as pragmatic appeal in the development of contemporary Chinese and Japanese societies.

Although Confucianism has attracted an increasing number of scholars to search for the reason that it is regarded as the main ethical factor in the success of East Asian modernization,[5] Weber (1864-1920) had argued that Confucianism would be unable to bring forth modern capitalism and consequently would fail to produce modernization. However, when we look at Japan and other countries of South East Asia, such as South Korea, Singapore, and Taiwan, the facts paint a much different picture. Weber's main point was that like Puritanism, Confucianism is rational, but that there exists a fundamental difference between the two in that, whereas Puritan rationalism seeks to exercise rational control over the world, Confucian rationalism is an attempt to accommodate oneself to the world in a rational manner. He concluded that it was this sort of mental attitude among Confucianists that was a major factor in preventing the emergence of modern capitalism in China.[6]

While Confucian ethic stresses the prime goal of self-perfection through a literary education, the Puritan or Protestant ethic, which Weber regarded as significant in the rise of capitalism in the West, stressed personal salvation through hard work, sobriety, and thriftiness. Moulder asserts that "the typical Puritan earned plenty, spent little, and reinvested his income as capital in rational enterprise out of an asceticist compulsion to save."[7] This Protestant asceticism has been well adapted in the course of Japanese economic development without major ruptures in the balancing artistry of accommodating modernization within a traditional orthodoxy. Morishima states that out of the various virtues stressed by Chinese Confucianism, such as benevolence, righteousness, gratitude, wisdom, faith, loyalty, and filial piety, Japanese Confucianism, almost consistently since Shotoku Taishi (573-621), has paid little attention to benevolence and righteousness, but emphasized loyalty, filial piety, and wisdom.[8] This lack of regard for benevolence is relevant in the case of Japan if compared to the Protestant asceticism which according to Weber, led to the possibility of capital accumulation for industrial investment in the West. Although Confucianism was understood in Japan as an ethical system rather than a religion, "it has directly (or rather indirectly through the medium of Bushido, or chivalry) taught the Japanese people that frugality was a virtue."[9]

The Metaphysics of Universal Truths

While philosophers of antiquity such as Socrates, Plato, Copernicus, Pythagoras, and others attempted to explain the nature of order and patterns of relationship in both the cosmic and temporal universes, early Japanese and Chinese views of order, harmony, and nature go beyond mere philosophy and are built on a vague system of beliefs concerning man as an integral part of nature. According to Olsen, "this feeling linked man as one with his surroundings and made him observant of the sensibilities of those surroundings both animate and inanimate."[10]

In reviewing the literature, the one underlying theme that tends to characterize Chinese and Japanese concepts of the universe and man's role in it is the reference to dualism. While the Chinese view the universe as a harmony between opposites (day and night), the Japanese view the universe as "man-nature." "To the extent

that Chinese Confucianism, with its regard for 'benevolence' as the most important virtue was well adapted to the sort of civilian control structure that existed in China, Japanese Confucianism, on the other hand preached 'loyalty,' in the sense of sacrificing one's whole life to one's lord (the daimyo),"[11] which adapted it most succinctly to the prevailing warrior rule of the Bakufu. "Each country had therefore developed a ruling structure in conformity to its respective ideology."[12] In fact, the Japanese value for unquestionable obedience to their rulers, honor to their elders, and the inclination to set aside matters of individual conscience, seem to provide a religio-cultural justification for committing harakiri (self-disembowelment) as a means of atonement for ones' failure in service to the Emperor. At all events, Chinese Confucianism is humanistic and contrasts very much to the nationalistic orientation of Japanese Confucianism. However, the essential bond between the two is that the overall Confucian "macro-ethical" values about the nature and perfectibility of man, and the values of harmony, integrity, and organic interdependence of the universe not only fit well with the modernization of society, but also acts as "antidotes" towards some of the ill-effects of development.[13]

While the Japanese argue that Confucianism can be adapted to the modern world as long as it is based on the resources of cultural tradition, the Chinese argue that such adaptation or change "must follow a fixed cosmic pattern consisting of eternal oscillation between two poles, the "yin" and "yang."[14] Furthermore, although Olsen argues that the man-nature values which are embodied in the folk-Shinto related essentials of Japanese culture are not compatible with the destructive activities which accompany modernization and industrialization, he points out that the compartmentalization of values which developed to accommodate this dichotomy is a crucial characteristic of modern Japan, and this dichotomy has permitted the addition of new values without excluding the old.[15] Based on the above assertions, it is possible to infer that the Japanese concept of human nature is voluntaristic, while the Chinese is deterministic. A voluntarist view of human nature contends that in the relationship between man and his environment, man can, out of his own free will, create reality out of that relationship. This value construct is embodied in the Japanese infatuation with "technological adaptation" which tends to pit man against nature, in a duel that results in the transformation of certain elements of nature so that man can co-exist in harmony with it. Education, science, and individual excellence become the social artifacts that undergird this transformation process.

Conversely, the Chinese conception of human nature tends to fall within the deterministic and objectivist point of view. A deterministic approach contends that all social reality is determined outside of man, and that the forces that shape the characteristics of beings or systems can only be explained as a function an outer logic beyond the scope of those beings or systems. According to Kang, the universe in Chinese philosophical thought is a harmoniously functioning system consisting of an orderly hierarchy of interrelated parts and forms which are all equally essential for the total process; hence, the dialectical change in the harmonious cooperation of all beings is a marked feature of the process.[16] The logic of this kind of reasoning is akin to our concept of biological systems in which all the interrelated parts must function in an order determined only by the pattern of cell mutation and structural metamorphosis that gave life to the system in the first place.

Furthermore, in looking at how everything relates to every other thing, the Chinese tend to reflect a Platonic (mind and matter) view of reality (what is). They see heaven and earth, Being and Non-Being, male and female, self and others, li (principle of form) and chi (principle of matter), Hsing (reason) and Ching (emotion), knowledge and conduct, good and evil, production and destruction, life and death, virtue and vice, victory and defeat, and on into infinite

regress. They see the world as both a contradiction and harmony between opposites. I see this point as the eternal and perhaps irreconcilable paradox which the Chinese have yet to overcome and which has provided the watershed or point of departure between them and the Japanese - as evidenced by the disparate nature of their socioeconomic development. While the Japanese assert that man can adapt well with other elements of nature irrespective of contradictions, the Chinese take the alternate view that contradictions can only be resolved within the context of a dialectic determinism. These opposing views help to explain both Chinese paralysis and Japanese dynamism when confronted with the facts regarding a full-hearted embrace of a modern global economy.

In terms of family structure, "the Japanese family system differs from the Chinese system, in which family ethics are always based on relationships between particular individuals such as father and son, brother and sister, parent and child, husband and wife. In Japan, familial interactions are always based on the collective group (i.e., members of a household), and not on the relationships between individuals."[17] The criterion by which the Japanese classify individuals socially tends to be that of particular institutions, rather than of a universal attribute. Hence, "kinship which is normally regarded as the primary and basic human attachment, seems to be coopted in Japan by a personalized relation to a corporate group based on work, in which the major aspects of social and economic life are involved."[18] For the Japanese, order and authority are not merely symbolic but seem to dictate a cultural imperative with a tint of divine obedience. Acceptance and conformity becomes a sentimental journey through which the Japanese can find fulfillment both within themselves as part of the whole. Hence, the Japanese "desire to be," becomes a "desire to be for the other."

Development Ideology and the Imperatives of Modernization

The "transition to modern society calls for a complex explanation that takes into account the interplay of ideas and interests without falling back on prior assumptions regarding one-sided causal dependencies. In describing modernization processes - that is the emergence of capitalist society - as a process of rationalization, Weber investigates how the cognitive potential arising from the rationalization of world views becomes operative at the social level."[19] He concludes that a decentered understanding of the world offers the possibility of a subjectivism freed from imperatives of objectification in dealing with individualized needs, desires, and feelings. Hence, the transfer of this understanding of the world from the level of cultural tradition to the level of institutionalized social action. In the same vein, Inglehart[20] argues that the relationship between economic and cultural change is one of complex reciprocal causality, with cultural factors not only being influenced by economic change, but also influencing it. He states that the Confucian system was virtually unique among traditional cultures in that it institutionalized a socially accepted and even honored channel for upward mobility (i.e., education) based on non-violent individual achievement rather than ascription.

It can thus be argued that the nature and pattern of modernization in most traditional polities reflect to an extent, the cultural embededness of specific value orientations. "The roots of Japanese entrepreneurship can be traced to the Baku-Han system, a system that had existed during the nearly 300 years of the Tokugawa era (1603-1868), until it was eventually overthrown by the socio-political forces that led to the Meiji Restoration (1867-1868).[21] While the Baku-Han system allowed some degree of autonomy to the various large number of domains or fiefdoms, at the same time, it had concentrated supreme political and economic authority in the hands of a central military government or "bakufu," with the Shogun in position of ultimate authority.[22] But the origins of modern day Japanese capitalism can be attributed to the Meiji government which founded state-operated industrial enterprises which they regarded as important from the viewpoint of nation-building.[23]

Moreover, the Japanese had developed a remarkable foresight in the early stages of their

industrial development. This foresight can be subsumed within three factors: skilled labor, technology, and a growth strategy. This strategy was exemplified by the initiation of a structural change - aimed first at labor-intensive industries, and later at skilled-labor and knowledge-intensive products. Beida[24] characterized this as a step-by-step movement, with a massive effort to introduce universal education as pre-condition of structural change and growth, while at the same time rapid improvements were taking place in agriculture, for a long time the very basis of growth and source of resources in other sectors. But in order to industrialize, Japan's strategy needed to move beyond the agricultural economy into other areas where the available skilled labor can be more effectively utilized. The challenge they faced then was how to acquire the essential technology and scientific know-how.

Though China and Japan embrace the Confucian theology, "China's bureaucrats showed a stolid opposition to the sciences of the West, while Japan's governments from the Tokugawa Bakufu (1603-1868) through to the Imperial government which followed the Meiji Revolution showed nothing but an enthusiastic desire to acquire this same science."[25] This was made possible for the fact that "while the Japanese were able to free their minds from that part of their Confucian legacy that was, in practice, hostile to technological change, they carried into the new world traditional codes of conduct and habits of mind which served the cause of national power and economic progress."[26] As was stated earlier, Chinese Confucianism is humanistic while Japanese Confucianism is reasonably nationalistic. Morishima[27] argues that it was because of this transformation of Confucianism into a nationalistic Japanese version that modern Japan was able to pursue a course of development so completely different from China's in the same period. He states that, as Japan was confronted by the great powers of the world, Confucianism and Shintoism collaborated; the former perfectly suited to the construction of a constitutional-monarchic regime based on a modern bureaucracy, while the latter can easily serve as a catalyst to promote nationalism.

Alternatively, Confucianism Chinese-style, was basically conservative and establishment-oriented. The "central concepts stressed the need to achieve harmony in society through moral conduct in all relationships."[28] The "Chinese approach to economic development can reasonably be characterized as the achievement of a modernized socialist economy by using a Soviet-type economic system and growth strategy adapted to China's special conditions."[29] In relative terms, while the Soviet system can be distinguished by the nationalization of the means of production, the organization of the agricultural economy into large-scale collectives, the mobilization of the state and the public by means of a Leninist Party apparatus, and the policy goal of industrialization, two of the most distinctive features of Chinese economic development, the "cooperative-commune" form of organization and the full mobilization of the rural labor resources, were a direct product of a revolution that put the poor in command.[30]

Under the Maoist rural political economy, resources flowed primarily through a vertical, bureaucratically dominated system which controlled the goods produced in the countryside and transferred according to the dictates of a planned command economy.[31] Although the Great Leap Forward and the proletarian Cultural Revolution were considered to be great economic disasters that may have set China back years, Selden[32] points out that even the reforms of the 1980s harbor an inherent contradiction, and that it is equally important to underline the overriding structural continuities: the new role of the market and the private sector in an economy in which state enterprises remain dominant and the Communist Party continues to exercise tight control over the political process.

The "Chinese economy has remained for three decades an exclusively planned economic system since the founding of the People's Republic in 1949. The system gradually exposed its inherent limitations in the late 1970s, when the nation set development as its foremost task. In order to keep pace with global advancement and achieve prosperity, policy makers decided to revamp the 30-year-old economy, and open China's door to foreign capital and advanced technology."[33] With the development of Special Economic Zones

in various regional locations in the country, and the decentralization of controls and autonomy, China has successfully but cautiously embraced crucial elements of a market economy. However, "due to their unique history, culture, and political thought, the Chinese have developed certain behavioral characteristics and attitudes which have remained puzzling to the West. A typical metaphor the Chinese use to describe their reform policies, whether economic or political, is 'crossing the stream by feeling the stones with one's feet.' This implies, among other things, that while there is a long-term goal of modernization, the 'method' will be situationally decided but certainly not predetermined."[34] Hence, the issue remains how to reconcile the tensions inherent in an approach that simultaneously seeks change and continuity, economic activism as well as preservation of the politico-cultural status quo.

Conclusion

In line with the main argument of this paper, I believe that it is possible to conclude that, although the Chinese and the Japanese have a common Confucian heritage, they are different in practice. Though in recent years, there has been a reversal of economic fortunes in favor of the Chinese, "but if its present 10 percent growth rate should continue and spread, and if one adds the productive power of the Chinese communities in Hong Kong, Taiwan, and Singapore, then the China of the twenty-first century will look formidable."[35] Perhaps, Japan can find remedy for its recent economic crisis by retracing its Confucian heritage. Or perhaps, there is more to learn from the Chinese metaphor of "one step forward and two steps backward."

[1] Vuylsteke, Richard R. "Confucianism and Modernization," Free China Review, Vol. 38, No. 12, December 1988, p. 64.
[2] Inglehart, Ronald, "The Renaissance of Political Culture," American Political Science Review, Vol. 82, No. 4, December 1988, p. 1228.
[3] Chi-Sen, Chen, "Confucius on Insider Trading: Updating Business Ethics," Free China Review, Vol. 38, No. 5, May 1988, p. 28.
[4] Pei-Jung Fu, "Confucian Ritual in Modern Form," Free China Review, Vol. 38, No. 1, January 1988, p. 46-49.
[5] Ibid 4, p. 46.
[6] Morishima, Michio, Why Has Japan "Succeeded"? Western Technology and the Japanese Ethos. Cambridge, England: Cambridge University Press, p. 1-2.
[7] Moulder, Frances V. Japan, China, and the Modern World Economy: Toward a Reinterpretation of East Asian Development (1600-1918). Cambridge, England: Cambridge University Press, 1977.
[8] Ibid 6, p. 1-19.
[9] Ibid 6, p. 2-9.
[10] Olsen, Edward A. Japan: Economic Growth, Resource Scarcity, and Environmental Constraints. Boulder, CO: Westview Press, 1978, p. 22.
[11] Ibid 6, p. 14-15.
[12] Ibid 6, p. 15.
[13] Ibid 1, p. 65.
[14] Kang, Shin Pyo, "The Culture of East Asians," in the East Asia Culture and its Transformation in the West, 1972.
[15] Ibid 10, p. 27.
[16] Ibid 14, 1972.
[17] Nakane, Chie. Japanese Society. Berkeley, CA: University of California Press, 1970, p. 13.
[18] Ibid 17, p. 7.
[19] Habermas, Jurgen, The Theory of Communicative Action: Reason and Rationalization of Society, Vol. 1, Boston, MA: Beacon Press, 1981, p. 216.
[20] Ibid 2, p. 1228.
[21] Sumiya, Mikio, and Koji Taira. An Outline of Japanese Economic History 1603-1940: Major Works and Research Findings (eds), Tokyo, Japan: University of Tokyo Press, 1979.
[22] Ibid 21, 1979.
[23] Ibid 6, 1982.
[24] Beida, K. The Structure and Operations of the Japanese Economy, New York: John Wiley & Sons, 1970.
[25] Ibid 6, p. 16.
[26] Allen, G. C. A Short Economic History of Japan. New York: St. Martin's Press, 1981.
[27] Ibid 6, p. 18.
[28] Wang, James C. F. Contemporary Chinese Politics: An Introduction, Englewood Cliffs, NJ: Prentice Hall, Inc, 1989.
[29] Dernberger, Robert F. China's Development Experience in Comparative Perspective, Cambridge, MA: Harvard University Press, 1980, p. 91.
[30] Ibid 29, 1980, p. 91-113.
[31] Reynolds, Bruce, and Ilpyong J. Kim. Chinese Economic Policy: Economic Reform at Midstream. New York: Paragon House, 1988.
[32] Selden, Mark. The Political Economy of Chinese Socialism. Armonk, NY: M. E. Sharpe, 1988, p. 3-30.
[33] Sujah, Sharif M. "China After Deng Xiaoping: Implications for Japan," East Asia: An International Quarterly, Vol. 17, (1), Spring 1999, p. 76.
[34] Ibid 33, p. 69-71.
[35] Ibid 33, p. 74.

Mass Media and Racism

Stephen Balkaran

MASS MEDIA HAVE PLAYED AND WILL CONTINUE TO PLAY A CRUCIAL role in the way white Americans perceive African-Americans. As a result of the overwhelming media focus on crime, drug use, gang violence, and other forms of anti-social behavior among African-Americans, the media have fostered a distorted and pernicious public perception of African-Americans.[1]

The history of African-Americans is a centuries old struggle against oppression and discrimination. The media have played a key role in perpetuating the effects of this historical oppression and in contributing to African-Americans' continuing status as second-class citizens. As a result, white America has suffered from a deep uncertainty as to who African-Americans really are. Despite this racial divide, something indisputably American about African-Americans has raised doubts about the white man's value system. Indeed, it has also aroused the troubling suspicion that whatever else the true American is, he is also somehow black.[2]

Racism

Before attempting to understand racism and mass media, one must understand the history of racism. Race has become an institutional part of American society. From the Founding on, race has played an integral part in shaping the American consciousness. David Goldberg's *Racist Culture* argues that racial discourse may be interpreted as aversive, academic, scientific, legalistic, bureaucratic, economic, cultural, linguistic, religion, mythical, or ideological.[3] He also stresses that racialized discourse and racist expressions towards African-American have been widespread. Race matters exist in different places and at different times under widely varying conditions.

American race relations provides a case study in Marxist class theory. Marx argued that society has two classes: the exploited or working class, and the exploiters or owners of the means of production. He further stressed that one class will ultimately overpower the other using any necessary means. Looking at American society we can clearly see the development of the two class system. There were slave owners and slaves, and racism served as a means to overpower the exploited class.

Segmentation Theory

In the 1980's, Michael Reich developed the Segmentation Theory or the Divide and Rule, which attempted to explain racism from an economic point of view. In this theory, Reich proposes that the ultimate goal in society is to maximize

Stephen Balkaran is a law student at the University of Connecticut.

profits. As a result, the exploiters will attempt to use any means to: (1) suppress higher wages among the exploited class, (2) weaken the bargaining power of the working class, often by attempting to split it along racial lines, (3) promote prejudices, (4) segregate the black community, (5) ensure that the elite benefit from the creation of stereotypes and racial prejudices against the black community.

Reich argues that the major corporations in the U.S. (e.g. Time Warner, Coca Cola, General Motors, etc.) all have at least one member on each other's corporate boards of directors. As a result, it is in the interest of these members to maximize profits while employing the above devices. The mere fact of these corporate executives' sharing economic corporate power, combined with the quest for economic profit has now paved the way for economic discrimination. But the question still remains, is the media one of the tools used to promote racism? Does the elite use the media to ensure profits are maximized by corporations?

The U.S. Media And Racism

Media have divided the working class and stereotyped young African-American males as gangsters or drug dealers. As a result of such treatment, the media have crushed youths' prospects for future employment and advancement. The media have focused on the negative aspects of the black community (e.g. engaging in drug use, criminal activity, welfare abuse) while maintaining the cycle of poverty that the elite wants.

There are no universally accepted and recorded codes or rules, which apply to journalists in news selection and production. The media have devoted too much time and space to "enumerating the wounded" and too little time to describing the background problems of African-Americans.[4] What is not a crisis is not usually reported and what is not or cannot be made visual is often not televised. The news media respond quickly and with keen interest to the conflicts and controversies of racial stories. For the most part, they disregard the problems that seep beneath the surface until they erupt in the hot steam that is the *"live"* news story.

The Riots

The media have not studied important events in the African-American community today. Issues such as urbanization, education, poverty, and other elements have a significant bearing on positions of the black community. A good example of this is the media portrayal of the Los Angeles riot in 1992. What we witnessed in Los Angeles was the consequence of a lethal linkage of economic decline, cultural decay, and political lethargy in American life.

Race was the visible catalyst, not the underlying cause, as media portrayed it to be.[5][4] The portrayal of this individual event encouraged the perception that the black community was solely responsible for the riots and disturbances. According to reports, of those arrested, only 36% were black and of those arrested, more than a third had full-time jobs and most had no political affiliation.[5] Some 60% of the rioters and looters were made up of Hispanics and whites. Yet the media did not report this underlying fact. The media portrayal of this event along with other race riots has again inflicted negative charges and scorn on black awareness. Race riots in Miami in 1980 were similar to the later Los Angeles riots. Here the media also refused to search for the underlying cause behind the protest choosing instead only to depict African-American males engaged in violence and destruction. The underlying factors behind these problems were never researched or explained in prior stories.

The Rodney King Story

The defense put on by the four white Los Angeles police officers accused of beating Rodney King in 1991 is telling. They claimed that they were scared and felt they might have been attacked or harmed, a legitimate excuse in the white American society. Their "fear" is a manifestation of a deep-rooted media bias that anything black is bad. This media stereotype of bad guys wearing black or that anything that is black is evil has been fostered for decades—e.g., the fact that the bad guy always wore the black in Westerns, and the movie *The Birth of a Nation*. This media bias

has also been illustrated in the Susan Smith case. Smith was the South Carolina woman who made headlines when she claimed that a black male kidnapped her two young children. It turned out that Smith herself had killed them. However, the finger-pointing that her accusations set off are indicative of the media's reflexive need to blame blacks for social ills. This same reflex can also seen in the case of Charles Stuart in Boston who killed his wife and also blamed it on a black man. The media have taken a step further in Hollywood. Here, the portrayal of young African-American males (involved in gangs and other deviant acts of violence) has become a multi-million dollar industry. American society has now accepted these stereotypes which the film media have ascribed to the black community. Films such as *Boyz in the Hood* and *Menace II Society* have become multi-million dollar success stories with criminal portrayals of young blacks. This portrayal, over time, has fostered false beliefs in white America regarding the way we perceive and view blacks. What the media refuse to acknowledge is that the vast majority of blacks are employed, attend school, and are not involved in gangs or other criminal activities. It is now quite common for young African-American males to be stopped and questioned by cops for any misfits. The profit motive behind continuing this stereotype is a fact. One can only conclude that Michael Reich's Segmentation Theory might be right. It is in the interest of the elite to use media to demean one class by using racial stereotype in order to maximize their profits.

The U.S. News, Media and Race

Clearly, the economic structure of the American news media and the local media make them subject to pressures from powerful interest groups. In 1967, the Kerner Report attacked the mass media for their inadequate handling of day-to-day coverage of racial events. The Report charged the media with failing to properly communicate about race to the majority of their audience. That is, white America needed to hear more about the actual conditions and feelings of African-Americans in the U.S. Only when events are associated with concern of the "white public" do they become newsworthy. Given the situation in America where the major news media have predominantly white reporters and serve a mainly white audience, it follows that the "public" which dictates newsworthy events is a white public. The day to day tensions of black existence and exploitation, which are crucial concerns of the black community, are not primary concerns of the white public. Only the symptoms of these conditions, such as freedom rides and social disturbances, impinge upon whites. Hence, it is only such "events" which become newsworthy in a white press.

One of the main reasons for the inadequate coverage of the underlying causes of racial stereotypes in the U.S. is that the condition of blacks itself is not a matter of high interest to the white majority. Their interest in black America is focused upon situations in which their imagined fear becomes a real problem. Events like boycotts, pickets, civil rights demonstrations, and particularly racial violence mark the point at which black activity impinges on white concerns. It is not surprising that the white-oriented media seek to satisfy the needs of their white audience and reflect this pattern of attention to these selected events.

Research has disclosed that most serious crimes (homicide, rape, robbery, and assault) in inner cities are committed by a very small proportion of African-American youth, some 8% by estimates.[6] Yet the tendency to characterize all African-American males as criminals continues in our society. It is now common for law officers to stop young black males and to harass them as a result of this stereotype. The negative stereotype has continued to affect the black community, as well as their prospects for employment and advancement. All this has been destroyed and, as a end result, it has contributed to high unemployment within the African-American community.

Some Selected Statistics

What the media refuse to acknowledge is the fact that between 1967 and 1990, the percentage of black families with incomes of a least $50,000 more than doubled from 7 to 15 percent. The median income of African-American families in which both husband and wife worked rose from

$28,700 in 1967 to $40,038 in 1990, an increase of more than 40 percent. By comparison, the median of white family incomes with two wage earners increased 17 percent during this period, from $40,040 to $47,247.[7]

Although there are significant variations in school dropout rates from community to community, nationally the dropout rates for both blacks and whites have decreased since the 1970's. The proportion of African-American high school dropouts fell from 24 to 13 percent from 1972 to 1991. When family income and other background differences are taken into account, African-American youths are no more likely than whites to drop out of school. For many African-American youths, staying in school has not improved their prospects for full- or part-time employment. In fact, unemployment among this group remains at more than twice the rate for white youths.[8] The consequence of racially biased coverage is to maintain racist stereotypes in popular culture and to lead us towards an increasingly dysfunctional society. Given that the news media are staffed and controlled almost exclusively by whites, it follows that the media-reinforced popular consensus is that of the predominant sub-culture. The dysfunctional aspect of this bias emerges when the realistic concerns of African-Americans are dismissed as irrelevant or threatening to the majority population.

Conclusions

The media have and will continue to portray a self-serving negative stereotype of the African-American community. The societal and economic factors of racism have become more than just a bias. They are also a profitable industry, in which the elite will continue to suppress the lower class in order to maximize profits. According to Harvard professor Cornell West, 1 percent of the elite holds some 48 percent of America's wealth. This means that media, racism, and stereotypes will continue to be employed so that those elite can be sure of their continuing economic stability.

Thanks to Ronald Taylor Ph.D., Director of the Institute for African American Studies and Professor of Sociology, Darryl McMiller, Ph.D. Professor of Political Science, and Rose Lovelace, Program Coordinator of the IAAS at the University of Connecticut for their help in researching and documenting this paper.

[1] Ronald L. Taylor, "The Harm Wrought by Racial Stereotype," *Hartford Courant,* 19 March 1995, D1.

[2] Ralph Ellison, *What America Would be like without Blacks.* (Preager Press, 1970), 4.

[3] David Goldberg, *Racist Culture* (Cambridge, Mass: Blackwell Publishers, 1993), 42.

[4] Paul G. Hartmann, *Racism and the Media* (Rowman & Littlefield Press, 1974),147.

[5] Cornell West, *Race Matters* (Cambridge, Mass: Blackwell Publishers, 1993), 74.

[6] Ibid., 3.

[7] Ronald L. Taylor, "The Harm Wrought by Racial Stereotype," *Hartford Courant,* 19 March 1995, D4.

[8] Ibid., D4.

[9] Ibid., D4.

Speak Out!

THE YALE POLITICAL QUARTERLY welcomes well-reasoned responses to any of our articles or commentaries.

Letters to the Editor should be e-mailed to josh.chafetz@yale.edu, submitted via our webpage at http://www.yale.edu/ypq/ or mailed to:
THE YALE POLITICAL QUARTERLY
P.O. Box 200455
New Haven, CT 06520-0455

Resolution on Timor Island

Hope For a Better Tommorrow?

Daniel O'Connor

On September 15, 1999, the United Nations Security Council approved a UN-led peacekeeping mission to East Timor, a small nation occupying half of Timor Island, a Southeast Pacific island unofficially part of Indonesia. Since most Americans have never heard of East Timor, and certainly could not locate the country on a map, many were surprised and confused when reports of atrocities suddenly flooded the international media in early September. Although the crisis looked grim, swift and decisive action has provided, at least for now, some semblance of stability in the region. This international action not only suggests that peace between the involved powers is feasible, but also that the international community as a whole is starting to have greater appreciation for democratic and human rights ideals.

Historical Background

The East Timorese people have struggled for centuries to gain national autonomy. As far back as the early 16th century, Dutch and Portuguese colonists laid claim to Timor Island. Although the Dutch relinquished control of West Timor to Indonesia in 1949, Portugal governed East Timor until 1974.[1] When the Portuguese abruptly left, rebuffing an attempt from Indonesia to annex East Timor, unrest disrupted plans for independent East Timorese rule. Factions in East Timor split between the leftist Fretlin Party, which argued in favor of an independent East Timor, and those wanting to join Indonesia. Nine days after civil war erupted in East Timor,[2] Indonesian paratroopers, armed predominately with American weapons, invaded the fledgling state.[3]

Officially, the international community objected to Indonesia's blatant aggression against East Timor. During Indonesia's twenty-four year reign over the state, the United Nations has passed ten resolutions condemning Indonesia's occupation.[4] Most western countries refuse to recognize East Timor as the "twenty-seventh state" of Indonesia but rather as a state controlled by a foreign power.[5] However, Cold War balance-of-power considerations, economic considerations, and post-Vietnam inhibitions discouraged Western powers from using force or other aggressive diplomatic techniques to free East Timor in 1975 or afterwards.[6]

The United States has particularly followed a *Realpolitik* attitude toward Indonesia regarding East Timor. Indonesia invaded East Timor in 1975 after President Ford and Secretary of State Henry Kissinger met with Indonesian dictator Suharto in Jakarta. The U.S. then doubled military aide to Indonesia and contin-

Daniel O'Connor is a Government major at Colby College, the co-founder of Colby's Political Affairs Reader, *and a YPQ staff writer.*

ued to sell Indonesia weapons for the next twenty years.[7]

The Suhartan regime was particularly hostile towards East Timor. After the original invasion of East Timor, Suharto ordered the Indonesian army to continue killing thousands of East Timor citizens, torturing resistors and political leaders, and starving innocent people in concentration camps. A particularly savage massacre occurred in 1991 when Indonesian troops surrounded and gunned down (with American M-16 rifles) 270 Timorese civilians at the Santa Cruz Cemetery in Dili.[8] Human rights organizations estimate that 200,000 East Timorese have died during Suharto's twenty-four year reign, twenty-five percent of the country's total population.[9]

Human rights abuses against the East Timorese, such as the Santa Cruz massacre, have changed American policy towards Indonesia. Although the U.S. State Department has licensed more than 300 military sales to Indonesia since 1991, Congress nevertheless has been more selective in the type of military support. In September 1993, an amendment sponsored by Senator Russ Feingold (D-WI) conditioned Indonesian arms sales on human rights in East Timor. Other military prohibitions included a ban on small and light riot gear (July 1994), a ban on armored personnel carriers and helicopter-mounted equipment (July 1996) and the postponement of the sale of nine F-16 fighter planes (November 1996).[10]

The Clinton Administration has also aggressively fought for East Timor. Following through on presidential campaign promises, Clinton publicly turned aside arguments favoring business interests over East Timorese human rights in 1993. In June 1997, President Clinton attended a meeting between National Security Advisor Sandy Berger and East Timorese Nobel Peace Prize recipient Bishop Carlos Belo to discuss the current human rights conditions on the island. In November of that year, Clinton consistently raised the issue of East Timor with President Suharto at the annual Asian-Pacific Economic Cooperation (APEC) conference.[11]

The Current Crisis

In 1998, the Asian economic crisis and other unrelated internal pressures forced President Suharto to resign from office. Suharto chose as his successor B.J. Habibie, a protégé whom Suharto expected to adhere to his policies.[12] However, Habibie surprisingly introduced reforms to Indonesia, most notably in regards to East Timor. Although continuing some of the human rights abuses against the East Timorese, Habibie also released East Timorese political prisoners and extended to local leaders greater political control over local affairs. Then, in the spring of 1999, Habibie suddenly allowed East Timor to hold a referendum concerning their independence from Indonesia. United Nations authorities aided Indonesia with plans to hold the election on August 30.[13]

The reforms took many Indonesians by surprise, including General Wiranto, the chief of Indonesia's armed forces. During the weeks leading up to the election, Wiranto may have become nervous that the independence of East Timor could lead to the dissolution of Indonesia. Wiranto may also have grown accustomed to causing violence in Timor. For whatever reason, before the election, Wiranto formed militias with Indonesian men and East Timorese opposed to East Timor independence, presumably to skew or derail the referendum. These militias caused great havoc and carnage in East Timor.[14]

A particularly savage massacre occurred in 1991 when Indonesian troops surrounded and gunned down (with American M-16 rifles) 270 Timorese civilians at the Santa Cruz Cemetery in Dili.

However, immediately before the election, the militias inexplicably backed off, and East Timor overwhelmingly voted for independence.[15] After the announcement of the official election results, the militias rampaged for nearly two weeks, and in the process killed thousands,[16] and then looted and razed the capital city of Dili. The United Nations Children's Defense Fund estimates that

450,000 East Timorese fled either to the neighboring mountains or to Indonesian-controlled West Timor, a location that concerns many UN officials.[17]

Many experts are still unsure exactly what caused this bloodshed. Some suggest that pro-Jakartan East Timorese forces are using this violence as a way to demand some Indonesian enclave within East Timor. Others argue that Indonesia is attempting to use this violence as a warning to separatist movements in East Timor and to wreak vengeance on the state. This argument seems less likely since Indonesia itself offered the referendum and because so many citizens voted for independence—it would be difficult to punish the entire state. Still others argue that Habibie is trying to regain faith with his military advisors on the East Timor issue to win re-election later this fall, which is even less likely because Habibie has, although ineptly, tried to resolve this crisis peacefully.

As news of the crisis spread, the international community rushed to the defense of East Timor. Australia, the closest regional power, immediately transported 500 peacekeepers to East Timor. Over September and October, Australia has increased its support, now the largest single force on the island.[18] The UN Security Council, having received pressure from UN Secretary General Kofi Annan, pressed for an invitation from Indonesia to help mediate a resolution to the crisis. Receiving it, the Security Council determinedly[19] adopted a resolution authorizing a peacekeeping mission of over 8000[20] soldiers. Australian Major General Peter Cosgrove leads the peacekeeping operations.[21]

Conclusion

Although the East Timor situation has not yet reached its conclusion, one can already draw a number of important lessons from the crisis' management. First, assuming that the peacekeeping forces succeed in stabilizing East Timor, the United Nations will have demonstrated not only the viability of collective security, but also the UN's important role in establishing peace. The fact that the U.S. will provide only a small fraction of this peacekeeping force will further legitimate the role of regional powers in such problems and highlight the importance of international cooperation. American allies who have a greater security interest in Indonesian stability, such as Australia, are providing more resources to serve their mutual interests, thereby alleviating pressures on the already over-extended U.S. military.

American weapons sales to Indonesia deserve some scrutiny as well. It seems ironic and hypocritical that the United States and its allies are, years later, suddenly reproaching Indonesia for atrocities committed with weapons we sold them. Although Cold War realities seem to justify the arming of the Suhartan regime, a more humane and careful military armament program may have avoided the current need for intervention. The Gulf War seems to present a similar paradox, in which Americans fought against an enemy armed with American weapons.

Nevertheless, the intervention by the United Nations in East Timor also upholds greater global principles of democracy and human rights. The intervention may come to represent an affirmation of the right of people everywhere, after suffering "a long train of abuses,"[22] peacefully and rationally to declare their independence from such rule. The intervention may also uphold the doctrine of majority rule, enforcing the vote in a way that adheres to the overwhelming desire of the majority, rather than caving to the factious militancy of the small minority.

Also, and perhaps more importantly, the mission demonstrates a concerted commitment of the international community to uphold international standards of the treatment of other humans. As Kofi Annan stated to the United Nations, nations can no longer cite sovereign rights when it is clear to the world that they are committing abuses against their own citizens.[23] While we may still only dream of a world dedicated to a common perception of human rights, the action in East Timor may be one indication that the international community is ready to take steps toward this goal.

---

[1]Mark Landler, "Indonesia's top military commander disputes death reports in East Timor," *New York Times*, 21 September 1999, Online:

<http://www.nytimes.com>.

[2] December 7, 1974.

[3] Melissa Roberts, Ron Moreau and Michael Hirsh, "A Superpower's Dilemma," *Newsweek*, 20 September 1999, 32-33.

[4] East Timor Action Network, "Background on East Timor and U.S. Policy." October 1998, Online: <http://www.etan.org/timor/BkgMnu.htm> (visited on 9/25/99).

[5] John M. Miller, "East Timor: an inconsistent case of U.S. policy," 12 June 1999, Online: <http://www.etan.org/et99/june/6-12/6easttim.htm> (visited on 9/25/99).

[6] Ibid. According to Miller, former Secretary of State Kissinger stated that "the Indonesians told us that they were going to occupy the Portuguese colony of Timor. To us (Kissinger and Ford) that did not seem like a very significant event."

[7] East Timor Action Network, op. cit.

[8] Ibid.

[9] Miller, op. cit.

[10] Ibid. These sales included machine guns and M-16 rifles, electronic components, communications equipment and spare parts for attack planes.

[11] Seth Mydans, "Who is behind the carnage in East Timor and Why?," *New York Times*, 8 September 1999, Online: <http://www.nytimes.com>.

[12] East Timor Action Network, op. cit.

[13] Mydans, op cit.

[14] Ibid.

[15] Ibid. 78.5% of those voting voted for independence for East Timor.

[16] Landler, op. cit. General Wiranto admits to killing "only 900-7000 East Timorese."

[17] Mydans, op. cit.

[18] Associated Press, "Unrest Continues in East Timor as Peacekeepers Work to Take Control," *New York Times*, 21 September 1999, Online: <http://www.nytimes.com>.

[19] Compared to similar action or inaction in Iraq, Rwanda, and Kosovo. In the case of Kosovo, the U.S. and Great Britain bypassed the UN in favor of a more efficient and more favorable NATO.

[20] Currently near 9000.

[21] Seth Mydans, "Peacekeepers stake claim to capital of East Timor," *New York Times*, 21 September 1999, Online: <http://www.nytimes.com>.

[22] John Locke, *Second Treatise of Civil Government*, ed. C.B. Macpherson (Indianapolis: Hackett, 1980), 113.

[23] Barbara Crossette, "U.N. Chief Wants Faster Action to Halt Civil Wars and Killings," *New York Times*, 21 September 1999, Online: <http://www.nytimes.com>.

write for us

THE YALE POLITICAL QUARTERLY is curently seeking staff writers, layout designers, and business staff for the only non-partisan political journal on the Yale campus.

For information, e-mail the Editor-In-Chief at josh.chafetz@yale.edu or visit our webpage at http://www.yale.edu/ypq/

Individuals and Drugs

Ari Holtzblatt

AMERICANS PRESENT THEMSELVES AS ARDENT DEFENDERS OF INDIvidual liberties. Yet, American legislation is also strongly informed by the contradictory philosophy of Paternalism. Paternalism and philosophic Liberalism embody two incompatible relationships between the government and an individual. Both standards allow the government to interfere in individual actions that bring harm to another individual. But for the proponent of individual liberties, a government's coercive power can extend no farther. On the other hand, the Paternalist allows the government to decide what is best for an individual, even in purely private actions, and to enforce that idea of proper behavior.

The American example shows that it is possible (if not consistent) for Liberal and Paternalistic tendencies to exist side by side. It should be noted that by Liberal I intend to refer to a political philosophy whose primary concern is the respect of individual liberties. My use of Liberal should not be confused with the contemporary political use of the term. Throughout the twentieth century, the issue of regulating alcohol and drug use has exhibited the tension that exists between these two schools in America. Americans have largely resisted encroachments on their right to smoke tobacco products and to drink alcohol, while simultaneously calling for stricter control over "harder" drugs like cocaine and heroin. I will not explore the very interesting question of why some drugs are socially unacceptable and thus prohibited while others are freely used. Instead, I will examine how Paternalistic laws such as drug regulations, which many politicians support, are evaluated in light of a Liberal respect for indivudal liberties that is held by most of these politicians.

I will explore two avenues that might provide a philosophic Libertarian with the justification that he would need to legislate against drug use. The first path presents the claim that drug use does in fact have victims, although perhaps more subtle ones, and thus can be prohibited. J.S. Mill, in *On Liberty*, addresses (and rejects) this suggestion in his discussion of a British attempt at prohibiting alcohol.[1] The second path uses Liberalism's other exception to liberty—that a juvenile may be coerced. If an act, such as drug use, were to convert someone from the state of adulthood to that of childhood then it might be legitimate to prohibit such an act.

Victimless Crime?

Does drug use cause harm to others? Certainly some drug users cause some harm to some people some of the time. After all, a crack mother might neglect her children, an operator of heavy machinery might lose control of his machine while high, or a drunk driver might crash and kill innocents. Since drug users are more likely to hurt someone in their state of intoxication, should not drug use, as the harm-causing agent, be prohibited? The problem with this reasoning is that not

Ari Holtzblatt is a junior in Berkeley College and a YPQ staff writer.

all drug use results in harm to others all of the time. Certainly there is such a thing as responsible (read: not harmful) use of drugs. It is probably rare that someone smoking pot in the privacy of his own home will cause harm to anyone else. In fact, most situations in which drugs are used do not lead to another's harm. Rather, it is the use of drugs *and* doing something else, not drug use alone, that causes harm. The government may regulate such combined activities but prohibiting drug use to stop some easily identifiable harmful uses of drugs is an unnecessarily and unjustifiably broad stroke. Exhaustive space would be required to determine an exact line between when drug use combined with another activity becomes harmful to others and when it is not. However, it is clear that such a line does exist and that there are a significant number of drug uses that do not themselves cause harm to others. The potential harm-causing property of some instances of drug use cannot be used to justify regulating the whole.

Often drug use is blamed for causing other acts, acts that are, in themselves, harmful. For example, one might claim that mothers who use crack will neglect their children, causing the children harm. Consequently, the mother should not be allowed to use crack. However, the problem here is the neglect, not the drug use. The government may legislate against neglect without preventing drug use in its entirety and thus focus the law on that which definitely and unquestionably causes harm.

Another interesting case study is that of the transportation crisis in New York in the late '80s.[2] One morning during rush hour, the subway system ground to a halt, stranding and delaying thousands of workers. This disaster was largely blamed on drug users who had stripped the subway's electrical system of copper wiring. This copper could be sold to pawn shops, and the money used to buy drugs. Obviously, the theft of the subway's copper was seriously harmful to many people. But it would be inaccurate to say that all drug users contributed to this problem. While prohibiting drug use might have prevented the New York subway shutdown, it would also have interfered with the harm-free actions of countless other drug users. Furthermore, it is not clear that drug users were the only ones drawn to steal the city's copper wires. Money acquired from pawnshops might be used to buy any number of legal things, such as bread, in addition to drugs. That expensive and in-demand items, such as drugs and food, cause the impoverished to steal, cannot justify the illegalization of those items. The government can punish a harmful act but it cannot prohibit the potential cause of that act unless there is an *absolute and direct correlation* between that act and the harm that is caused (like the aiming of a loaded gun at someone and the pulling of the trigger). This is not to say that regulating potential causes is not expedient and efficient. However, expedience is a weak moral justification.

While it seems impossible to claim that drug use causes physical harm in others, one might still claim that it harms others via its demoralizing effect on society. To generalize this point, if one's act violates another's moral sensibilities, then the government is justified in regulating that act. The problem with this suggestion is that it limits appropriate behavior to only those actions that are universally accepted as morally legitimate or to opinions or actions done in complete secrecy. All other acts will offend someone, and the government will be required to restrict these harm-inducing actions.[3] Not only is this suggestion ludicrous, it undermines the very foundation of Liberalism. No diversity of social discourse can be attained as long as the slightest hint of offense (presumably sparked by disagreement) would be sufficient to squelch further discussion. Not only eccentric, but even mainstream views would likely have to be checked. I must conclude then, that drug use is in fact a truly victimless act and so, to this point, I have not uncovered any justification for its criminalization under the Liberal paradigm.

Drug User as Child?

The classic Liberal doctrine allows two exceptions to the general protection of liberty. If one's act interferes with another's liberty then one's own liberty may be curtailed. The implications of this clause for drug use were discussed above. The second deviation from the Liberal

norm involves children. According to J.S. Mill, "Those who are still in a state to require being taken care of by others must be protected against their own actions as well as against external injury."[4] However, once children or "mankind have attained the capacity of being guided to their own improvement by conviction or persuasion" coercion is not only unallowable but is also counterproductive.[5] Mill concludes that all adults of modern times fit into this category. Thus, no laws should restrict victimless actions by adults.

What makes an adult, an adult? The essential factors in adult behavior must be the capacity to think and to make conscious decisions. The reason that children may still be compelled is that these abilities must still be developed. Until fully matured, such individuals may be harmful to themselves and others around them and are not capable of bringing to society the positive effects that fully developed individuals can bring. Might this mean that the government is allowed to treat those of adult age but of a juvenile mindset, as if they were children? This is sometimes done in America. The courts can order that an individual who suffers from some psychological disorder be placed against his express wishes in a mental asylum. And, in the case of a mentally underdeveloped individual, a court might accept the claim that she is incapable of making choices and so could not have consented to sexual intercourse. Thus, the partner of an adult with a severe case of Downs Syndrome might be prosecuted for statutory rape.[6]

The government may not suspend the addict's right to speak or act freely. It may only act to end the addict's addiction and restore his full set of choices. Once that has occurred, government interference must end.

What are the implications of this theory for the right of a government to regulate drug users? Does drug use incapacitate one's ability to make choices? It would seem that the addictive qualities of drugs do just that. The Oxford English Dictionary defines addiction as: "the, or a, state of being addicted to a drug... a compulsion and need to continue taking a drug because of taking it in the past."[7] While one is addicted to a drug, one loses the ability to choose to stop taking that drug. Like in the case of a juvenile, the individual's capacity to make choices is not complete, and so the government might be able to legislate over him.

Before proceeding any further it must be determined whether drug use and drug addiction are synonymous. If they are not, then the prohibition of drugs, solely on the basis that they might or might not cause addiction, is not justifiable. That some drug users stop taking drugs, by choice or otherwise, does not answer this question. A casual smoker, not addicted to cigarettes, might one day become addicted to them (maybe because he started smoking more). While addicted to cigarettes, he is incapable of *choosing* to stop smoking. However, that does not mean that he will never stop smoking. If he goes on a trip for a month and does not have access to cigarettes, his separation from cigarettes may end his addicted state. That he chooses to stop smoking after his trip does not imply that he was never addicted to cigarettes. All it shows is that when he decided to stop, he was not an addict. Addiction is not permanent but it is inescapable without an external influence. This could be a happenstance separation from tobacco products or it could be a coercive rehabilitation program. But no individual can make a conscious choice alone to end addiction.

To claim that drug use leads necessarily to addiction requires that an individual would become addicted after a single use. In the example of the single-time user, there is no confusion as to whether he was addicted once and quit only after he ceased to be addicted. Either that single use caused him to be addicted, or it did not. If it did not then he might choose to stop (which does not mean that he *would* stop). Since some people do use drugs once and stop after that single use, we can say that drug use does not necessarily cause addiction. Consequently, the government is not justified in preventing all drug use simply because some users eventually become addicted. If the government prevented all drug use, then both the addicts and the non-addicts would be prevented from using drugs. At this point, the only conclusion that can be made is that the government may

be able to legislate over some of the behavior of addicts.

Of course, there may be a drug that would always, after only one use, cause addiction. In that case, the government may be able to prevent the use of that drug. However, if even one person could use the drug without becoming addicted to it, then prohibitive legislation would not be justified, as it would violate that individual's liberty. If a drug only sometimes causes addiction after one use, the government must either legislate the addiction or prevent only those absolutely predisposed to addiction from using the drug. This latter possibility is prohibitively tedious and technologically difficult and so probably would not be instituted.

Are addicts truly unjustly deprived of the choosing faculty? It might be argued that an addict is no different from one who signs a contract (to start using drugs) that afterwards binds him (by addiction) and thus limits the choices he could make. But with whom does he sign the contract? A contract must create for one person an obligation to another. Even if we could call addiction an obligation there is no subject to which one is obliged. Additionally, a drug use "contract" lacks the characteristic predetermined ending point of most contracts. Finally, a drug use "contract" does not allow for any involved party to void the contract and relieve the signatory of his obligations. The only contracted party is the user and addiction prevents him from voiding the "contract." Drug use does not resemble a contract situation in form and should not be compared to one.

I have shown that no blanket regulation of drug use is permissible. However, the state may compel addicted individuals. What degree of coercion is permitted? Addiction does not prevent an individual from speaking or praying, from choosing to dance or to sing. The only choice that is withheld from an addict is the choice to stop using whatever drug it is that he is addicted to. In this way, the addict differs from the juvenile. A juvenile's general ability to choose is not yet developed, and so the government may step in to help develop it. Therefore, the government may not suspend the addict's right to speak or act freely. It may only act to end the addict's addiction (through mandatory drug rehab, education, the withholding of a drug supply, etc.) and restore his full set of choices. Once that has occurred, government interference must end.

Up to this point, addiction has been discussed as though it is easily defined and easily identifiable. Addiction, as it has been discussed, means the loss of the ability to choose not to take a drug. In order for this to be meaningful in a practical and legislative sense, several questions must be answered. Is there such a thing as psychological addiction as opposed to biological addiction? What would the different implications of each be? How does one determine that a person is addicted or not? What about non-drug addictions, such as to gambling, or sex? Can they be treated in the same way? These questions are for another more extensive exploration of the nature of addiction itself. For now, I merely note that the issue of addict treatment and coercion is not without its unsettled questions.

It is unsurprising that Liberalism is hard pressed to justify anything but a very limited coercive government involvement with drug-using individuals. The painstaking nuances that I have uncovered must concern the Liberal legislator. To him, the realm of the individual is sacred territory and can only be trespassed with the utmost care. These cares for the integrity of individual space need not be taken by the Paternalist. A general social plan is more important than worries over individual rights violations. American lawmakers are often drawn to strong moralistic and paternalistic acts. It is essential though, that they give more than just lip-service to the school of individual liberties and explore the contradictions inherent in their various political models.

---

[1] John Stuart Mill, *On Liberty* (Indianapolis: Hackett Publishing Company, Inc., 1978), 87.

[2] Timothy Egan, "A Drug Ran Its Course, Then Hid With Its Users," *NewYork Times,* 19 September 1999, A1.

[3] Mill, 87.

[4] Mill, 9.

[5] Mill, 10.

[6] I was unable to find an example of this type of case from legal lore. So, it should be understood only as an interesting hypothetical.

[7] Oxford English Dictionary, 2nd ed., s.v. "addiction," Online: <http://jeeves.library.yale.edu/oed/>.

"Never underestimate the stupidity of some of the people we have to deal with."
— **William A. Reinsch**, Under Secretary of Commerce for the Bureau of Export Administration, before the House International Relations Committee, silencing questioning from Representative Bradley J. Sherman (D-CA), as reported in the 25 May 1999 *New York Times*.

"Colombia, the world's leading producer of cocaine, has decided to include income from illegal drugs in official calculations of its gross domestic product, authorities said Tuesday."
— Off the **Reuters Wire**, 9 June 1999.

"I am confident that as the chef continues to refine it, the Senate rice pudding will someday surpass the House rice pudding."
— **Senator Rick Santorum** (R-PA) on the dessert wars between the House and Senate Members' Dining Rooms, as quoted on <http://www.excite.com/>.

"Why should President Clinton go back to Little Rock to try to make world peace, like Jimmy Carter, or go off to Hollywood to fetch Jeffrey Katzenberg's coffee, when he could stay here and torment us–not to mention his wife–some more? Why have a legacy when you can have 'Groundhog Day'? Why have an amicable divorce when you can have 'War of the Roses'?"
— **Maureen Dowd**, in her 30 June 1999 *New York Times* column, on the possibility of a Senate run by Bill Clinton in 2002.

"Ever since I declared my candidacy for president of the United States, concerned citizens have been asking me: 'Dave, why don't you also run for U.S. Senator from New York?'"
— **Dave Barry** in his 2 July 1999 *Miami Herald* column.

"I ate too much."
— **President Clinton**, after feasting on baby back ribs, catfish, steaks, and potato salad, during his four-day tour of America's poorest regions, as quoted in the 19 July 1999 issue of *Newsweek*.

"From the moment Mr. Quayle announced his candidacy in Huntington, Ind., on April 14, it failed to catch fire."
— **Frank Bruni**, in the 27 September 1999 *New York Times*, on Dan Quayle's reported withdrawal from the 2000 presidential race.

"Scientists lost a $125 million spacecraft as it approached Mars last week essentially because they confused feet and pounds with meters and kilograms, the National Aeronautics and Space Administration said today."
— **Andrew Pollack**, in the 1 October 1999 *New York Times*.

A DIVISION OF YALE UNIVERSITY
INFORMATION TECHNOLOGY SERVICES

REPROGRAPHICS & IMAGING SERVICES

RIS

Full color and B&W copies
Site-managed printing/copying
Course materials
Complete mail service
Free pick up and delivery
Graphic design
Offset printing
Complete bindery services
Network accessibility

155 Whitney Avenue • 432-6560

FAX: 432-6274
http://www.yale.edu/ris